

		that coordination was not required for judicial economy or to avoid duplicative rulings.” (<i>Shaw v. Superior Ct. of Contra Costa Cnty.</i> (2022) 78 Cal. App. 5th 245, 252–53 [emphasis added]; <i>see also Turrieta v. Lyft, Inc.</i> (2024) 16 Cal. 5th 664, 677 [noting that a trial court ruled that coordination would not promote the ends of justice when the actions to be coordinated were already “stayed for all purposes.”].) Second, Petitioner has not shown that the convenience of parties, witnesses, and counsel would be promoted by coordination, or that the relative development of the actions support coordination. Due to the varying procedural postures of each of these actions, coordination would not benefit these actions. There are pending motions to compel arbitration in the <i>Romero</i> PAGA Action and the <i>Figueroa</i> Class and PAGA Action. The <i>Tate</i> PAGA Action is stayed and scheduled for mediation on July 21, 2026. Most importantly for Petitioner’s PAGA Action, the <i>Martinez</i> actions have settled following mediation, and, if approved by the court, would foreclose Petitioner’s PAGA claims at least as to MCS. Third, in light of the procedural posture of each of the five actions, coordination would impede settlement rather than increase the likelihood of settlement of the actions without further litigation. Based on the foregoing, the Petition for Coordination is denied on the additional ground that it would not promote the ends of justice. Petitioner is ordered to give notice of this ruling.
14	30-2021-01195763 Redfeather vs. Embee Processing, LLC	Plaintiffs Corina Christina Redfeather, Marcelino Peralta Vallejo, and Jose Peralta Vallejo’s (collectively, “Plaintiffs”) Motion for Class Certification is DENIED. “The party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives. . . . In turn, the community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (<i>Brinker Restaurant</i>

		<i>Corp. v. Superior Court</i> (2012) 53 Cal.4th 1004, 1021 [internal quotations and citations omitted].) These elements are typically referred to as: (1) ascertainability; (2) numerosity; (3) commonality; (4) typicality; (5) adequacy; and (6) superiority. (See e.g. <i>Capitol People First v. State Dept. of Developmental Services</i> (2007) 155 Cal.App.4th 676, 681.) Plaintiffs bear the burden of proof on these elements. This must be established by admissible evidence; the parties may not rely on allegations in their complaint. (<i>Soderstedt v. CBIZ Southern Calif., LLC</i> (2011) 197 Cal.App.4th 133, 154-155 [where plaintiffs submitted only 3 declarations of proposed class members, in the absence of admissible evidence re size of class, moving party failed to meet burden to show numerosity]; <i>Barriga v. 99 Cents Only Stores LLC</i> (2020) 51 Cal.App.5th 299, 322-323 [trial court has duty to scrutinize declarations re class certification to ensure they are not the product of “coercion or deception”].) “A certification motion ‘does not ask whether an action is legally or factually meritorious . . .’ . . . but rather whether the common issues it presents ‘are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.’” (<i>Sarun v. Dignity Health</i> (2019) 41 Cal. App. 5th 1119, 1131.) “[C]ourts are not limited to the class definition proposed in the certification motion.” (<i>Id.</i> at 1137.) “If necessary to preserve the case as a class action, a court may redefine the class to reduce or eliminate an ascertainability or manageability problem.” (<i>Id.</i> at 1138.) <u>I. Motion for Class Certification</u> The court finds that Plaintiffs have failed to carry their burden to prove that the relevant factors support class certification. Plaintiffs ask that the court certify the following Class and Subclasses: a. Class: All current and former hourly-paid or non-exempt employees employed by Defendants Embee Processing, LLC, All Metals Processing of Orange County, LLC, Noble Aerospace, LLC, Embee Acquisition Holdings, Inc., All Metals Processing Holdings, LLC, and Michael Coburn (“Defendants”) within the State of California at any time during the period from April 16, 2017 up to the deadline, to be determined by the Court at a later date, by which class
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		members may opt-out after being provided notice of certification (the “Class Period”). b. Off The Clock Work Class: All current and former hourly-paid or non-exempt employees employed by Defendants that 1) were suffered or permitted to work off the clock or 2) were under Defendants’ control without being compensated through the Class Period. c. Rounding Subclass: All non-exempt employees at the Stanton, California location who, during the period from April 16, 2017 through December 31, 2019, had their hours on the clock rounded for purposes of determining compensable time. d. Rounded Meal Break Subclass: All non-exempt hourly employees of one or more Defendants within the State of California who, during the period from April 16, 2017 through December 31, 2019, had one or more recorded meal periods that, based on rounded timestamps, appeared to be 30 minutes in length and to occur within the first 5 hours on the clock, but that, based on unrounded timestamps, were less than 30 minutes and/or began after more than 5 hours on the clock. e. Meal Period Class: All non-exempt employees of one or more Defendants within the State of California who, during the period April 16, 2017 through the disposition of this case, were not provided at least one legally-compliant meal break on shifts over 5 hours. f. Partially Controlled Meal Period Subclass: All non-exempt employees of one or more Defendants within the State of California who, during the period from April 16, 2017 through the disposition of this case, worked in Defendants’ production departments recorded one or more meal periods of at least 30 minutes in length included less than 30 minutes of an uncontrolled, uninterrupted, duty-free meal period. g. Second Meal Period Subclass: All non-exempt employees of one or more Defendants within the State of California who, during the period April 16, 2017 through the disposition of this case, were not provided with a second legally compliant meal break on shifts over 10 hours. h. On-Site Rest Break Class: All non-exempt employees of one or more Defendants who, during the period from April 16, 2017 through July 1, 2021, were prohibited from leaving the premises during their rest breaks.
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| | <ul style="list-style-type: none">i. Rest Break Subclass: All hourly non-exempt employees of Defendants who worked at least one 3.5 hour shift but were not fully relieved of their work related duties to take all full uninterrupted ten minute rest breaks they were entitled to from April 16, 2017 through the disposition of this case.j. Derivative Wage Statement Class: All non-exempt employees of one or more Defendants within the State of California who, during at least one pay period from April 16, 2020 through the disposition of this case, did not receive all wages earned.k. Derivative Waiting Time Class: All non-exempt hourly employees of one or more Defendants in California who, at any time from April 16, 2018 through the date of class certification, separated from employment and were not paid all wages earned at the time of separation.l. Unfair Competition Law Class: All non-exempt hourly employees of one or more Defendants in California who, at any time from April 16, 2017 through the disposition of this case experienced at least one of the labor code violations alleged above. |
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Plaintiffs also ask that the court appoint Plaintiffs Corina Redfeather, Marcelino Peralta Vallejo, and Jose Peralta Vallejo as Class Representatives, and their counsel, David D. Bibiyan, Sarah H. Cohen, and Rafael Yedoyan of Bibiyan Law Group, P.C. and Scott Wheeler and Justin Wheeler of The Wheeler Law Firm, APC, as Class Counsel.

A. Ascertainability & Numerosity

Plaintiffs set forth facts to support the ascertainability and numerosity of only the On-Site Rest Break Class (which Plaintiffs call the “on duty rest break class”), the Rounding Subclass, and the Partially Controlled Meal Break Subclass. Plaintiffs do not address the ascertainability and numerosity of the off-the-clock work class, rounded meal break subclass, meal period class, second meal period class, rest break subclass, derivative wage statement class, derivative waiting time class, or unfair competition law class. Thus, Plaintiffs’ class certification motion is deficient on this ground.

B. Typicality & Adequacy

		Plaintiffs contend that their claims are typical of the class and subclasses because they are subject to the same policies. Plaintiffs contend that Plaintiff's Counsel is experienced in California wage and hour class actions and is qualified to advocate on behalf of the Class's best interests. Plaintiffs assert that Plaintiffs are adequate class representative, as they have no interests adverse to the Class, and have demonstrated that they will and have put the interests of the Class before theirs. However, Defendants have demonstrated that the nature of the positions held by each Plaintiff and the application of the policies for their meal and rest break periods, whether they were subject to the bell system for breaks, as well as the locations of their employment, and whether they were employed by Embee or AMPOC demonstrates that their claims are not likely to be typical of the class. Defendants argue that Plaintiffs cannot adequately represent the interests of class members who have signed releases and/or have signed arbitration agreements. Defendants state that 752 putative class members voluntarily released their claims, 179 from AMPOC and 573 from Embee, or roughly 66% of putative class members. Further, 714 employees signed arbitration agreements requiring arbitration of claims on an individual basis and waiving class claims, 95 employees from AMPOC and 619 from Embee. Plaintiffs challenge the validity of these releases and agreements, but this simply demonstrates that Plaintiffs may not share the same interests as the rest of the class. "Adequacy of representation depends on whether the plaintiff's attorney is qualified to conduct the proposed litigation and the plaintiff's interests are not antagonistic to the interests of the class." (<i>McGhee v. Bank of Am.</i> (1976) 60 Cal. App. 3d 442, 450.) Accordingly, class certification is unwarranted based on these factors. C. <u>Commonality</u> "The 'ultimate question' the element of predominance presents is whether 'the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.' [Citations.]
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		Plaintiffs assert that employees would spend several minutes under Defendants' control during their meal breaks off the clock, both walking to their suitable meal break areas while on their meal breaks and waiting in line to clock in. Plaintiffs claim that because of Defendants meal break policies, the way their campuses were structured, and the number of timeclocks they chose to include on their campuses, every single employee spent time under Defendants' control without compensation. <u>Meal Period Policy</u> Plaintiffs claim Defendants have a uniform policy and procedure requiring employees to end their meal breaks early so that employees can clock back in on time from their meal breaks, and which failed to comply with California law. Plaintiffs claim that Defendants have a policy and practice of requiring employees to take short, late, or interrupted meal periods. Plaintiffs also claim that Defendants have a policy and practice of failing to pay meal period premiums. Plaintiffs also argue that Defendants have a policy and practice of failing to provide employees with a second meal break when they work more than 10 hours in a shift. Plaintiffs claim that the employee records show that meal breaks were late, short or missing, second meals were rarely provided, meal breaks were rounded to the detriment of employees, and meal premiums for missed meal breaks were not paid. Plaintiffs rely upon the analysis by their expert, Dr. Kriegler. <u>Rest Break Policy</u> Plaintiffs claim Defendants have a uniform rest break policy prior to July 1, 2021 that required employees to remain on premises during their breaks, and which failed to comply with California law. Plaintiffs claim that Defendants have a policy and practice of requiring employees to take short, late, or interrupted rest periods. Plaintiffs also claim that Defendants have a policy and practice of failing to pay rest break premiums, noting there is no evidence Defendants have ever paid a rest break premium. Plaintiffs rely upon the survey data analyzed by their expert, Dr. Ingersoll. <u>Uniform Rounding Policy</u> Plaintiffs claim Defendants have a uniform rounding policy that rounded hours recorded by employees. Plaintiffs claim
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	that based on the analysis of their expert, Dr. Kriegler, Defendants' rounding policies caused a net underpayment for employees and was not facially neutral. Defendants point out that each work location has multiple buildings where production employees work on an open floor, and administrative/clerical employees are spread throughout different offices and cubicles, and thus, the various facilities and locations create numerous variables that relate to each employee's experience related to time clocking and meal and rest breaks. Defendants also explain that their employees work a wide variety of different positions, noting that, while much of the workforce are production employees who work on the production floor, some are back end office support who work in a separate office area with more autonomy over their break schedule. During the relevant period, Embee had non-exempt employees in 23 different departments, and AMPOC had employees in 13 departments. Defendants provide evidence that employees did not experience uniform policies with respect to the policies and practices at issue. Defendants submit 45 current and former employee declarations that all confirm the employees were aware of Defendants' policies and practices requiring compliant meal and rest breaks and prohibiting off-the-clock work and were provided their breaks. The declarants state that if their records reflect any non-compliant meal break, it was due to their own choices and clocking habits, and not because Defendants failed to provide them with their breaks. All of these declarants deny off-the-clock work and deny that time clock locations and/or lines at time clocks resulted in short breaks or unpaid time. The employee declarants made statements similar to the following: • My practice is to clock in immediately before I start working. I have never performed any duties prior to clocking in for the start of my shift. At the end of my shift, I clock out and leave. I do not perform any duties after I clock out. I have never been asked to perform work while not clocked in, nor have I performed any work while not clocked in. It is my understanding that performing work without being clocked in or "off-the-clock" is against company policy and is strictly prohibited.
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		• I always take at least a 30-minute meal break on days I work at least five hours. I always take my meal break no later than the end of my fifth hour of work. If my shift is no longer than six hours, such as occasionally on Saturdays, I may choose to waive my meal break. If my time records reflect a late meal break, it is because I chose to clock out after my fifth hour worked, and not because anyone required that I take it late. The same is true for any time punches that reflect a meal break that is shorter than 30 minutes. No one has ever required that I take a short meal break. • I clock out for my meal breaks before I begin my break. There are multiple time clocks and I am free to use any time clock located throughout EMBEE. • I do not perform any duties during the time that I leave my work area and walk to the time clock. It takes me seconds to walk to a time clock. I have not had to wait in line to clock in or out at a time clock. If I have to wait in line (which I never do), I would not be required or even asked to do work during this time. I would be free to do whatever I want during this time. • I remember one time that I forget to clock in or out for my meal. This is because I personally forgot because I was going to get lunch, and not because of work-related duties. I always get an opportunity to take a full 30-minute meal break regardless of which time clock I use. I do not get disciplined if I am away from my workstation for longer than 30 minutes. In other words, EMBEE allows us sufficient time to clock out and back in for our meal breaks from any time clock while taking a full 30 minute meal break. • When I take my meal break, I usually go into the break room and sit and eat. I understand that I am permitted to leave the premises during my meal breaks. • There are no time constraints on my ability to do my job duties, such as coordinating work orders, that would prevent me from timely taking any of my prescheduled breaks. In other words, there is no reason that I cannot take timely breaks due to my work-related duties. • I understand that EMBEE permits me to take a paid 10-minute uninterrupted and duty-free rest break for every four hours that I work. I understand that I am permitted to leave the premises during my rest breaks. During my entire employment at EMBEE, no one has ever told me that I could not leave the premises during my rest
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		breaks. I always take my rest breaks. During my rest breaks I usually go to the tables outside the Penetrant Department. No one has ever asked me to come back from a rest break early. No one has ever told me I could not take a rest break or discouraged me from taking a rest break. • None of my supervisors or leads have ever asked me to perform work while I was clocked out, nor have I, for any reason, performed any work for which I was not paid. And, none of my supervisors or leads have ever interrupted my breaks or told me that I had to work during my breaks or while not clocked in. • I have always found that my paychecks and paystubs accurately reflect the number of hours that I worked, and the amount of overtime that I worked, if any, my pay rate, and the total pay that I was due for that pay period. I understand that if I believe there was an error in my paycheck, I could report it to my supervisor, manager, the payroll department, or Human Resources to resolve any discrepancy. (<i>See, e.g. Orellana Dec. ¶¶ 5-16.</i>) These employee declarants state: “I am freely and voluntarily providing this Declaration. I understand and agree that there would be no negative consequences in my employment with EMBEE if I decided not to provide this Declaration, and there will be no positive consequences in my employment for deciding to provide this Declaration. I have not been offered any money, promised any benefits or career advancement, or been threatened or coerced in any way by anyone at EMBEE to get me to sign this Declaration. I have been informed that I should review this Declaration carefully to be sure that it is complete accurate and true, and that I may make any changes to the Declaration that I feel are needed to make sure that it is completely accurate and true.” (<i>Id.</i> ¶ 19.) These declarations demonstrate that individualized inquiries would need to be made regarding whether employees had to stand in line to clock in or whether they clocked in early voluntarily, whether employees would have to walk significant distances to suitable break areas and how long it would take those employees, whether employees were allowed to go off site for breaks, and whether employees were in fact pressured to take shorter breaks, late breaks, or miss their breaks.
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		Defendants also argue that their meal and rest break policies were lawful. “An employer’s duty with respect to meal breaks . . . is an obligation to provide a meal period to its employees.” (<i>Brinker Rest. Corp. v. Superior Ct.</i> (2012) 53 Cal. 4th 1004, 1040.) “The employer satisfies this obligation if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable opportunity to take an uninterrupted 30-minute break, and does not impede or discourage them from doing so.” (<i>Id.</i>) “[T]he employer is not obligated to police meal breaks and ensure no work thereafter is performed.” (<i>Id.</i>) “Bona fide relief from duty and the relinquishing of control satisfies the employer’s obligations, and work by a relieved employee during a meal break does not thereby place the employer in violation of its obligations and create liability for premium pay[.]” (<i>Id.</i> at 1040-1041.) Class certification is not appropriate if “the only formal [company] off-the-clock policy submitted disavows such work, consistent with state law,” and there is no “substantial evidence of a systematic company policy to pressure or require employees to work off-the-clock[.]” (<i>Brinker Rest. Corp. v. Superior Ct.</i> (2012) 53 Cal. 4th 1004, 1051.) “[T]hat employees are clocked out creates a presumption they are doing no work, a presumption [a plaintiff] and the putative class members have the burden to rebut.” (<i>Id.</i>) “[L]iability is contingent on proof [the employer] knew or should have known off-the-clock work was occurring.” (<i>Id.</i>) This liability cannot be established based “anecdotal evidence of a handful of individual instances in which employees worked off-the-clock, with or without knowledge or awareness by [their] supervisors.” (<i>Id.</i> at 1052.) “[W]here no substantial evidence points to a uniform, companywide policy, proof of off-the-clock liability would have had to continue in an employee-by-employee fashion, demonstrating who worked off the clock, how long they worked, and whether [the employer] knew or should have known of their work,” and the class cannot be certified. (<i>Id.</i>) Defendants state that their written policies permitted employees to take their meal and rest breaks and there is no evidence of any uniform policies depriving employees of such breaks. Defendants point out there was no policy requiring employees to be back at their workstations at exactly the thirty-minute mark. Embee’s meal period policy states employee must clock out at the beginning of their meal break and not to clock in until “after taking a full (30) minute break, and may
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		not clock in before completing a full 30-minute break.” Accordingly, Defendants contend that Plaintiffs’ claim that employees clocked in early from meal breaks so that they would be on time is incorrect. Defendants also state that putative class members can voluntarily waive meal breaks for shifts that are six hours or less (which Defendants claim Plaintiffs did), and waive their second meal breaks for shifts between 10-12 hours if they did not waive their first meal break (which Defendants claim many putative class members did). “The employer is not liable if the employee chooses to take a short or delayed meal period or no meal period at all.” (<i>Donohue v. AMN Servs., LLC</i> (2021) 11 Cal. 5th 58, 78.) “[T]he employer's duty is to ensure that it provides the employee with bona fide relief from duty and that this is accurately reflected in the employer's time records.” (<i>Id.</i>) “If time records show noncompliant meal periods, then a rebuttable presumption of liability arises.” (<i>Id.</i>) “[T]he employer may rebut the presumption with evidence of bona fide relief from duty or proper compensation.” (<i>Id.</i>) Accordingly, the issue of break waivers would introduce individualized inquiries. Further, as to rest breaks, Defendants contend that because rest breaks are not recorded in the time punch data, individualized inquiries are necessary and rest break liability simply cannot be established through common evidence. Defendants also note that since employees working in certain departments have autonomy to take their breaks, the circumstances differ substantially among the putative class members. Defendants also point out that AMPOC has 8 timeclocks and Embee has 17 timeclocks, and Plaintiff’s claim that this number is inadequate is unsupported by admissible evidence as neither of Plaintiffs’ experts had any idea as to the number of timeclocks at each facility or the number of employees that were clocking in at each time clock. The court also finds the expert opinion of Dr. Ingersoll unreliable because he obtained responses from only 24 out of 481 putative class members, and the survey consisted of non-random, self-selected set of responses, his methodology was constrained by time limitations, and as the survey was conducted by staff members who work for Plaintiffs’ counsel. Accordingly, his opinions on the uniformity of Defendants’ policies hold little weight.
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		The court finds that Defendants have adequately demonstrated that Plaintiffs cannot establish commonality for the class claims in light of the wide variety of policies dependent on the positions held by each employee, the location each employee worked, whether or not they had discretion to take breaks, and whether they signed waivers. There is also lack of evidence of any common policy to pressure employees to do off-the-clock work, work during breaks, skip breaks or take short breaks. Accordingly, class certification is not appropriate for these classes and subclasses. In light of the predominately individualized issues at play, the court finds that class certification is unwarranted due to lack of commonality. <u>D. Superiority & Manageability</u> In support of these elements, Plaintiffs only vaguely assert that: “A class action here is far more efficient than having hundreds or thousands of individual lawsuits filed in an already congested court system. A class action constitutes the superior method, and a class action is a fair and efficient way to adjudicate all putative class members’ claims.” (Mot. at p. 21.) Plaintiffs provide no facts or evidence in support of these claims. Plaintiffs claim that liability will be determined by issues of fact that are common to all Class Members. Plaintiffs state that damages for each of the Class and Subclass claims will be based on an analysis of Defendants’ records, whether they be the time and pay records or the overall policies affecting each and every single employee. Plaintiffs also intend to rely on the use of surveys and written testimony from class members. However, as stated above, individualized issues predominate, thus undermining the usefulness of survey evidence or anecdotal testimony. Defendants also point out that Plaintiffs failed to provide a viable trial plan. “If statistical evidence will comprise part of the proof on class action claims, the court should consider <i>at the certification stage</i> whether a trial plan has been developed to address its use.” (<i>Duran v. U.S. Bank Nat’l Assn.</i> (2014) 59 Cal. 4th 1, 31.) “A trial plan describing the statistical proof a party anticipates will weigh in favor of granting class certification if it shows how individual issues can be managed at trial.” (<i>Id.</i>) “Rather than accepting assurances that a
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		statistical plan will eventually be developed, trial courts would be well advised to obtain such a plan before deciding to certify a class action.” (<i>Id.</i>) “[D]ecertification must be ordered whenever a trial plan proves unworkable.” (<i>Id.</i>) When a court finds that “survey data was unreliable . . . and unreliable as statistical support for selecting a representative witness group to testify as to liability or restitution without causing the inquiry to devolve into a multiplicity of individual mini trials,” taking into account a defendant’s “right to call witnesses outside the sample to establish its affirmative defense,” denial of class certification is warranted. (<i>Duran v. U.S. Bank Nat’l Assn.</i> (2018) 19 Cal. App. 5th 630, 650.) Here, the court finds that the evidence and opinions offered by Plaintiffs’ experts, Dr. Ingersoll and Dr. Krieger, are unreliable and/or insufficient to demonstrate that the claims in this action can be managed on a class-wide basis. Accordingly, class certification is unwarranted based on these factors. Based on the foregoing, this Motion is denied. II. <u>Evidentiary Objections</u> The court SUSTAINS Plaintiffs’ Objection Nos. 19-20 to the Declaration of Plaintiffs’ expert, Dr. William Ingersoll, and OVERRULES all remaining objections to the declaration. The court OVERRULES Plaintiffs’ Objections to the Declaration of Plaintiffs’ expert, Dr. Brian Kriegler. The court SUSTAINS Defendants’ objections to the Declarations of Jose Abraham Gonzalez Hernandez, Marcelino Peralta Vallejo (“Marcelino”) and Jose A. Peralta Vallejo (“Jose”) because they failed to include a translation certification under oath as required by CRC, Rule 3.1110(g). The court OVERRULES Defendants’ objections to the Declarations of Christina Redfeather and Frank Olvera. The court OVERRULES Defendants’ objections to the declaration of Anthony Loberg and Jose Abraham Gonzalez Hernandez to the extent they are based on these declarants’ refusal to sit for deposition as that does not render these declarations per se inadmissible. “[A] party may only introduce a witness's declaration if the opposing party had the opportunity to cross-examine the witness at deposition or
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		could require the witness to be subject to cross-examination at trial.” (<i>Target Nat’l Bank v. Rocha</i> (2013) 216 Cal. App. 4th Supp. 1, 7.) Here, Defendants have not demonstrated that these declarations are unavailable to be cross-examined at trial. The Declaration of Alberto Mosqueda Cruz was withdrawn through Plaintiffs’ counsel on March 16, 2026, so the court did not consider this declaration. The court OVERRULES Plaintiffs’ objections to the Declaration of Defendants’ expert, Levon Massmanian. The court SUSTAINS Plaintiffs’ objections to the Declarations of Imelda Landeros and Maria Robledo Perez on the grounds that their declarations are in English, when they are unable to read and write in English. The court OVERRULES Plaintiffs’ remaining objections to the employee declarations provided by Defendants in support of their opposition to this Motion. The court OVERRULES Plaintiffs’ objections to the Declaration of Alma Beatriz Cervantes, AMPOC and Embee’s HR Representative. III. <u>Request for Judicial Notice</u> The court DENIES Defendants’ request for judicial notice of a motion and order striking the testimony of Plaintiffs’ expert, Dr. Kriegler in another cases as it is irrelevant to the issues in this case. Courts are not required to take judicial notice of items if they are not “necessary, helpful, or relevant.” (<i>Jordache Enters., Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal. 4th 739, 748.) Plaintiffs are ordered to give notice of this ruling.
15	30-2023-01347301 Oglander vs. Tax Rise, Inc.	Plaintiff Daniel Oglander’s (“Plaintiff”) Motion to Compel Defendant Essam Abdullah’s (“Defendant” or “Abdullah”) Further Responses to Requests for Production, Set Three is GRANTED IN PART as to Request For Production (“RFP”) No. 36 (as outlined below), and GRANTED as to RFP Nos. 27-29, and 33-35, and 37-39. IT IS ORDERED THAT Defendant shall provide Plaintiff with further, code-compliant responses to Plaintiff’s RFP Nos. 27-29, and 33-39, and any